

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4326 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Anthony Moore

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4326

By: Moore

FLOOR SUBSTITUTE

An Act relating to the Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which relates to eligibility requirements; adding technology center school education to eligibility; updating references; expanding eligibility for students in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; defining who a parent is for a child of a certified teacher; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), which relates to student agreements; updating references; expanding eligibility for students in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; removing income requirement for student in the custody of the Oklahoma Department of Human Services, in the court-ordered custody of a private nonprofit child-placing agency, or a federally recognized Indian tribe during certain time; requiring Oklahoma State Regents for Higher Education verify standard or alternative certificate is in a classroom subject; expanding definition of certified teacher; clarifying computation of employment for purposes of eligibility; requiring standard or alternative certification be in a classroom subject as determined by the State Regents; clarifying effect of service as an emergency or provisionally certified teacher; increasing financial need qualification threshold amount on or after certain school year; amending 62

1 O.S. 2021, Section 34.87, as amended by Section 1,
2 Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025, Section
3 34.87), which relates to the transfer of funds to the
4 Higher Learning Access Trust Fund; requiring certain
5 calculations utilizing certain methodologies;
6 requiring certain calculated amounts be reported to
7 certain Boards; clarifying transfer determination;
8 providing an effective date; and providing a
9 conditional effective date.

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
12 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
13 2025, Section 2603), is amended to read as follows:

14 Section 2603. A. Except as otherwise provided for in
15 subsection B of this section and elsewhere in this section, to be
16 eligible to participate in the Oklahoma Higher Learning Access
17 Program and to qualify for an award which includes payment of an
18 amount equivalent to resident tuition or other tuition pursuant to
19 Section 2604 of this title for the first semester or other academic
20 unit of postsecondary enrollment, a student shall:

21 1. Be a resident of this state or be enrolled in a school
22 district located in this state that serves students who reside in
23 both this state and an adjacent state pursuant to a contract as
24 authorized in Section 5-117.1 of this title;

25 2. Be a United States citizen or lawfully present in the United
26 States. A student who is not a United States citizen or lawfully
27 present in the United States shall not be eligible to participate in

1 the Oklahoma Higher Learning Access Program and to qualify for an
2 award notwithstanding the provisions of Section 3242 of this title.
3 The provisions of this paragraph shall not apply to any student who
4 was enrolled in the Oklahoma Higher Learning Access Program prior to
5 the end of the 2006-2007 school year;

6 3. Have a record of satisfactory compliance with agreements
7 executed pursuant to Section 2605 of this title;

8 4. a. Have graduated within the previous three (3) years
9 from a high school accredited by the State Board of
10 Education or the Oklahoma School of Science and
11 Mathematics with a minimum 2.5 cumulative grade point
12 average on a 4.0 scale for all work attempted in
13 grades nine through twelve,

14 b. Have graduated within the previous three (3) years
15 from a high school not accredited by the State Board
16 of Education with a minimum 2.5 cumulative grade point
17 average on a 4.0 scale for all work attempted in
18 grades nine through twelve and have achieved a
19 composite score of 22 or higher on the ACT test, or

20 c. Have satisfactorily completed within the previous
21 three (3) years an educational program that was
22 provided through a means other than a public or
23 private school and have achieved a composite score of
24 22 or higher on the ACT test;

1 5. Have completed the curricular requirements for admission to
2 an institution within The Oklahoma State System of Higher Education
3 or have completed the core curriculum and be seeking admission to a
4 technology center school governed by the State Board of Career and
5 Technology Education. Students shall also have attained a 2.5 grade
6 point average in the ~~core~~ Oklahoma's Promise required curriculum
7 courses. Students who attended a high school which did not offer
8 all the ~~core~~ Oklahoma's Promise required curriculum courses or
9 students who were educated by other means and were not offered all
10 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
11 allowed to satisfy this curriculum requirement by participating in a
12 program approved by the Oklahoma State Regents for Higher Education
13 for remediation of high school curricular deficiencies;

14 6. Have satisfied admission standards as determined by the
15 Oklahoma State Regents for Higher Education for first-time-entering
16 students for the appropriate type of institution, or, if attending a
17 private institution, have satisfied admission standards as
18 determined by the private institution. No student participating in
19 the Oklahoma Higher Learning Access Program shall be admitted into
20 an institution of higher education by special admission standards;

21 7. Have secured admission to, and enrolled in, an institution
22 which is a member of The Oklahoma State System of Higher Education,
23 a postsecondary vocational-technical program offered by a technology
24 center school that meets the requirements to be eligible for federal

1 student financial aid, or a private institution of higher learning
2 located within this state and accredited pursuant to Section 4103 of
3 this title; and

4 8. a. Have established financial need according to the
5 provisions of subsection D of Section 2605 of this
6 title and standards and provisions promulgated by the
7 Oklahoma State Regents for Higher Education,

8 b. If the student was adopted between birth and twelve
9 (12) years of age while in the permanent custody of
10 the Oklahoma Department of Human Services, in the
11 court-ordered custody of a ~~licensed~~ private nonprofit
12 child-placing agency licensed by the Oklahoma
13 Department of Human Services, or federally recognized
14 Indian tribe, as defined by the federal Indian Child
15 Welfare Act of 1978, have established financial need
16 according to the provisions of paragraph 1 of
17 subsection E of Section 2605 of this title and
18 standards and provisions promulgated by the Oklahoma
19 State Regents for Higher Education,

20 c. If the student was adopted between thirteen (13) and
21 seventeen (17) years of age while in the permanent
22 custody of the Oklahoma Department of Human Services,
23 in the court-ordered custody of a ~~licensed~~ private
24 nonprofit child-placing agency licensed by the

1 Oklahoma Department of Human Services, or federally
2 recognized Indian tribe, as defined by the federal
3 Indian Child Welfare Act of 1978, have established
4 financial need according to the provisions of
5 paragraph 2 of subsection E of Section 2605 of this
6 title and standards and provisions promulgated by the
7 Oklahoma State Regents for Higher Education,

- 8 d. ~~If the student was placed~~ Was in the custody of the
9 Oklahoma Department of Human Services, in the court-
10 ordered custody of a private nonprofit child-placing
11 agency licensed by the Oklahoma Department of Human
12 Services, or federally recognized Indian tribe, as
13 defined by the federal Indian Child Welfare Act of
14 1978, at any time during the eighth, ninth, tenth, or
15 eleventh grade and enrolls in the program no later
16 than his or her official date of high school
17 graduation, ~~have established financial need according~~
18 ~~to the provisions of paragraph 3 of subsection E of~~
19 ~~Section 2605 of this title and~~ any additional
20 requirements according to the standards and provisions
21 promulgated by the Oklahoma State Regents for Higher
22 Education, or
- 23 e. If the student is the child of a certified ~~classroom~~
24 teacher and meets the provisions of paragraph 5 of

1 subsection E of Section 2605 of this title. For the
2 purposes of this paragraph, ~~"certified classroom~~
3 ~~teacher"~~ "certified teacher" shall have the same
4 meaning as provided in subparagraph d of paragraph 5
5 of subsection E of Section 2605 of this title. A
6 certified teacher shall be considered the parent of a
7 student if the certified teacher is the natural or
8 adoptive parent or the permanent legal guardian of the
9 student.

10 B. 1. A student shall be eligible to participate in the
11 Oklahoma Higher Learning Access Program and to qualify for an award
12 which includes payment of an amount equivalent to resident tuition
13 or other tuition pursuant to Section 2604 of this title for the
14 first semester or other academic unit of postsecondary enrollment if
15 the student meets all of the following criteria:

16 a. is a child of any person killed after January 1, 2000,
17 in the line of duty in any branch of the United States
18 Armed Forces or who died after January 1, 2000, as a
19 result of an injury sustained while in the line of
20 duty in any branch of the United States Armed Forces
21 and the person who was killed or died filed an
22 individual or joint Oklahoma income tax return for the
23 tax year prior to the year during which the person was
24 killed or died,

- 1 b. is a resident of this state or is enrolled in a school
2 district located in this state that serves students
3 who reside in both this state and an adjacent state
4 pursuant to a contract as authorized in Section 5-
5 117.1 of this title,
- 6 c. enrolls in an institution within The Oklahoma State
7 System of Higher Education prior to reaching the age
8 of twenty-one (21),
- 9 d. has satisfied admission standards as determined by the
10 Oklahoma State Regents for Higher Education for first-
11 time-entering students for the appropriate type of
12 institution, or, if attending a private institution,
13 has satisfied admission standards as determined by the
14 private institution. No student participating in the
15 Oklahoma Higher Learning Access Program shall be
16 admitted into an institution of higher education by
17 special admission standards,
- 18 e. has secured admission to, and enrolled in, an
19 institution which is a member of The Oklahoma State
20 System of Higher Education, a postsecondary
21 vocational-technical program offered by a technology
22 center school that meets the requirements to be
23 eligible for federal student financial aid, or a
24 private institution of higher learning located within

1 this state and accredited pursuant to Section 4103 of
2 this title, and

3 f. executes an agreement pursuant to subsection C of
4 Section 2605 of this title.

5 2. A student who is eligible to participate in the program
6 pursuant to this subsection shall not be required to meet the
7 eligibility requirements set forth in subsection A of this section.

8 C. To retain eligibility while pursuing the program of higher
9 learning in which enrolled, the student shall:

10 1. Meet the requirements for retention and degree completion as
11 established by the institution in which the student is enrolled;

12 2. Maintain good academic standing and satisfactory academic
13 progress according to standards of the Oklahoma State Regents for
14 Higher Education;

15 3. Maintain satisfactory academic progress as required for
16 eligibility for federal Title IV student financial aid programs.
17 The provisions of this paragraph shall become effective for the
18 2012-2013 school year;

19 4. Comply with the standards related to maintenance of
20 eligibility as promulgated by the Oklahoma State Regents for Higher
21 Education; and

22 5. Refrain from conduct that leads to expulsion or suspension
23 of more than one semester from an institution of higher education.

24 A student who violates the provisions of this paragraph shall

1 permanently lose eligibility for program benefits. The provisions
2 of this paragraph shall become effective January 1, 2008.

3 D. The Oklahoma State Regents for Higher Education and the
4 State Board of Career and Technology Education shall promulgate
5 rules relating to maintenance of eligibility under the Oklahoma
6 Higher Learning Access Act by a student.

7 E. It is the intent of the Legislature that students in the
8 ninth grade for the 1992-93 school year who are determined to be
9 eligible Oklahoma Higher Learning Access students pursuant to the
10 Oklahoma Higher Learning Access Act shall be the first students
11 eligible for benefits from the Oklahoma Higher Learning Access Trust
12 Fund.

13 F. The Oklahoma State Regents for Higher Education are
14 authorized to study, develop, and propose criteria for determining
15 award eligibility based upon the completion of seven semesters of
16 high school coursework by a student.

17 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
18 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
19 2025, Section 2605), is amended to read as follows:

20 Section 2605. A. Each school year, every fifth- through
21 eleventh-grade student in the public and private schools of this
22 state and students who are educated by other means and are in the
23 equivalent of the fifth through eleventh grade shall be apprised,
24 together with the parent, custodial parent, or guardian of the

1 student, of the opportunity for access to higher learning under the
2 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
3 for Higher Education and the State Board of Education shall develop,
4 promote, and coordinate a public awareness program to be utilized in
5 making students and parents aware of the Oklahoma Higher Learning
6 Access Program.

7 B. On a form provided by the Oklahoma State Regents for Higher
8 Education, every public school district shall designate at least one
9 Oklahoma Higher Learning Access Program contact person, who shall be
10 a counselor or teacher, at each public school site in this state in
11 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
12 When requested by the State Regents, the State Board of Education
13 shall assist the State Regents to ensure the designation of contact
14 persons. Private schools shall also designate at least one school
15 official as a contact person. For students who are educated by
16 other means, a parent or guardian or other person approved by the
17 State Regents shall be designated the contact person.

18 C. 1. Students who qualify on the basis of financial need
19 according to subsection D or E of this section or who meet the
20 eligibility qualification set forth in subparagraph d of paragraph 8
21 of subsection A of Section 2603 of this title or in subparagraph a
22 of paragraph 1 of subsection B of Section 2603 of this title no
23 later than December 31 of their twelfth-grade year or prior to
24 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on

1 the basis of the standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education shall be given the
3 opportunity throughout the eighth-, ninth-, tenth-, and eleventh-
4 grade years and no later than December 31 of the twelfth-grade year,
5 for students enrolled in a public or private school, or no later
6 than the date of graduation or between the ages of thirteen (13)
7 years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
8 years of age, for students who are educated by other means, to enter
9 into participation in the program by agreeing to, throughout the
10 remainder of their school years or educational program:

- 11 a. attend school or an educational program regularly and
- 12 do homework regularly,
- 13 b. refrain from substance abuse,
- 14 c. refrain from commission of crimes or delinquent acts,
- 15 d. have school work and school records reviewed by
- 16 mentors designated pursuant to the program,
- 17 e. provide information requested by the Oklahoma State
- 18 Regents for Higher Education or the State Board of
- 19 Education, and
- 20 f. participate in program activities.

21 2. Students who meet the eligibility qualification set forth in
22 subparagraph a of paragraph 1 of subsection B of Section 2603 of
23 this title after December 31 of their twelfth-grade year or after
24 reaching the age of eighteen (18) shall be given the opportunity

1 prior to reaching the age of twenty-one (21) to enter into
2 participation in the program and shall execute an agreement with
3 provisions as determined by the Oklahoma State Regents for Higher
4 Education.

5 3. The contact person shall maintain the agreements, which
6 shall be executed on forms provided by the Oklahoma State Regents
7 for Higher Education and managed according to regulations
8 promulgated by the Oklahoma State Regents for Higher Education, and
9 the contact person shall monitor compliance of the student with the
10 terms of the agreement. The Oklahoma State Regents for Higher
11 Education are authorized to process student agreements and verify
12 compliance with the agreements. Students failing to comply with the
13 terms of the agreement shall not be eligible for the awards provided
14 in Section 2604 of this title.

15 4. The Oklahoma State Regents for Higher Education may provide
16 an exception to the age limits provided for in paragraphs 1 and 2 of
17 this subsection pursuant to subsection L of this section.

18 5. Notwithstanding the provisions of Sections 5-132 and 5-132.1
19 of this title, a student who is age twenty-one (21) or older shall
20 not be eligible to enter into participation in the program.

21 D. Except as otherwise provided for in subsection E of this
22 section and except for students who qualify pursuant to subsection B
23 of Section 2603 of this title, a student shall not be found to be in
24

1 financial need for purposes of the Oklahoma Higher Learning Access
2 Program if:

3 1. Beginning with eighth-, ninth-, or tenth-grade students who
4 are enrolled in a public or private school or students between the
5 ages of thirteen (13) and fifteen (15) who are educated by other
6 means who apply for participation in the program in the 2017-2018
7 school year, the federal adjusted gross income of the student's
8 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

9 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
10 students who are enrolled in a public or private school or students
11 between the ages of thirteen (13) and sixteen (16) who are educated
12 by other means who apply for participation in the program in the
13 2021-2022 school year, the federal adjusted gross income of the
14 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
15 year;

16 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
17 students who are enrolled in a public or private school or students
18 between the ages of thirteen (13) and sixteen (16) who are educated
19 by other means who apply for participation in the program in the
20 2022-2023 school year:

21 a. the federal adjusted gross income of the student's
22 parent(s), who have two or fewer dependent children,
23 exceeds Sixty Thousand Dollars (\$60,000.00) per year,
24

b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4. Beginning with eighth-, ninth-, tenth-, or eleventh-grade students or twelfth-grade students no later than December 31 of their twelfth-grade year who are enrolled in a public or private school or students between ~~the ages of~~ thirteen (13) years of age and ~~seventeen (17)~~ prior to reaching eighteen (18) years of age who are educated by other means who apply for participation in the program in the 2025-2026 school year:

a. the federal adjusted gross income of the student's parent(s), who have two or fewer dependent children, exceeds Sixty Thousand Dollars (\$60,000.00) per year,

b. the federal adjusted gross income of the student's parent(s), who have three or four dependent children, exceeds Seventy Thousand Dollars (\$70,000.00) per year, or

c. the federal adjusted gross income of the student's parent(s), who have five or more dependent children, exceeds Eighty Thousand Dollars (\$80,000.00) per year;

1 5. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
2 students or twelfth-grade students no later than December 31 of
3 their twelfth-grade year who are enrolled in a public or private
4 school or students between thirteen (13) years of age and prior to
5 reaching eighteen (18) years of age who are educated by other means
6 who apply for participation in the program in the 2027-2028 school
7 year, the federal adjusted gross income of the student's parent(s)
8 exceeds One Hundred Thousand Dollars (\$100,000.00) per year;

9 6. Beginning with the 2018-2019 academic year, prior to
10 receiving any Oklahoma Higher Learning Access Program benefit award
11 for any year during which the student is enrolled in an institution
12 which is a member of The Oklahoma State System of Higher Education,
13 a postsecondary vocational-technical program offered by a technology
14 center school that meets the requirements to be eligible for federal
15 student financial aid, or a private institution of higher learning
16 located within this state and accredited pursuant to Section 4103 of
17 this title, the federal adjusted gross income of the student's
18 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
19 year.

20 The determination of financial qualification as set forth in
21 this paragraph shall be based on the income of the student, not the
22 income of the parent(s), if a student:

- 23 a. is determined to be independent of the student's
24 parents for federal financial aid purposes,

1 b. was in the permanent custody of the Oklahoma
2 Department of Human Services at the time the student
3 enrolled in the program, or

4 c. was in the court-ordered custody of a federally
5 recognized Indian tribe, as defined by the federal
6 Indian Child Welfare Act of 1978, at the time the
7 student enrolled in the program.

8 The provisions of this paragraph shall apply to any student who
9 has received an Oklahoma Higher Learning Access Program benefit
10 award after the 2017-2018 school year; and

11 ~~6.~~ 7. The Oklahoma State Regents for Higher Education shall
12 review the determination of financial qualification as set forth in
13 paragraphs 1, 2, 3, and 4 of this subsection if the income from
14 taxable and nontaxable sources of the student's parent(s) includes
15 income received from nontaxable military benefits or income received
16 from the federal Social Security Administration due to the death or
17 disability of the student's parent(s). If the income from taxable
18 and nontaxable sources of the student's parent(s), excluding income
19 received from nontaxable military benefits or income received from
20 the federal Social Security Administration due to the death or
21 disability of the student's parent(s), does not exceed the
22 limitations set forth by paragraphs 1, 2, 3, and 4 of this
23 subsection, the student shall be determined to have met the
24

1 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
2 this subsection.

3 E. 1. A student who was adopted between birth and twelve (12)
4 years of age while in the permanent custody of the Oklahoma
5 Department of Human Services, in the court-ordered custody of a
6 ~~licensed~~ private nonprofit child-placing agency licensed by the
7 Oklahoma Department of Human Services, or federally recognized
8 Indian tribe, as defined by the federal Indian Child Welfare Act of
9 1978, shall not be found to be in financial need for purposes of the
10 Oklahoma Higher Learning Access Program if at the time the student
11 begins postsecondary education and prior to receiving any Oklahoma
12 Higher Learning Access Program benefit award, the federal adjusted
13 gross income of the student's parent(s) exceeds One Hundred Fifty
14 Thousand Dollars (\$150,000.00) per year. The provisions of this
15 paragraph shall not apply to any student who has received an
16 Oklahoma Higher Learning Access Program benefit award prior to the
17 2012-2013 school year.

18 2. A student who was adopted between thirteen (13) and
19 seventeen (17) years of age while in the permanent custody of the
20 Oklahoma Department of Human Services, in the court-ordered custody
21 of a ~~licensed~~ private nonprofit child-placing agency licensed by the
22 Oklahoma Department of Human Services, or federally recognized
23 Indian tribe, as defined by the federal Indian Child Welfare Act of
24 1978, shall not be found to be in financial need for purposes of the

1 Oklahoma Higher Learning Access Program if at the time the student
2 begins postsecondary education and prior to receiving any Oklahoma
3 Higher Learning Access Program benefit award, the federal adjusted
4 gross income of the student's parent(s) exceeds Two Hundred Thousand
5 Dollars (\$200,000.00) per year. The provisions of this paragraph
6 shall not apply to any student who has received an Oklahoma Higher
7 Learning Access Program benefit award prior to the 2012-2013 school
8 year.

9 3. ~~A student who was placed in the custody of the Department of~~
10 ~~Human Services at any time during the eighth, ninth, tenth, or~~
11 ~~eleventh grade and enrolls in the program no later than his or her~~
12 ~~official date of high school graduation shall not be found to be in~~
13 ~~financial need for purposes of the Oklahoma Higher Learning Access~~
14 ~~Program if the federal adjusted gross income of the student exceeds~~
15 ~~Sixty Thousand Dollars (\$60,000.00) per year. Except for students~~
16 who qualify pursuant to subparagraph d of paragraph 8 of subsection
17 A and subsection B of Section 2603 of this title, the determination
18 of financial qualification as set forth in this subsection shall be
19 based on the income of the student, not the income of the parent(s),
20 if the student is determined to be independent of the student's
21 parent(s) for federal financial aid purposes. A determination of
22 financial qualification shall not be required for the student who
23 meets the criteria set forth in this subsection at the time the
24 student applies for participation in the program. The provisions of

1 this paragraph shall not apply to any student who has received an
2 Oklahoma Higher Learning Access Program benefit award prior to the
3 2008-2009 school year.

4 ~~5.~~

5 4. a. A student who is the child of a certified ~~classroom~~
6 teacher at the time the student applies for
7 participation in the Oklahoma Higher Learning Access
8 Program shall not be found to be in financial need for
9 the purposes of the Oklahoma Higher Learning Access
10 Program if, beginning with eighth-, ninth-, tenth-, or
11 eleventh-grade students or twelfth-grade students no
12 later than December 31 of their twelfth-grade year
13 who are enrolled in a public or private school or
14 students between thirteen (13) years of age and
15 ~~seventeen (17)~~ prior to reaching eighteen (18) years
16 of age who are educated by other means who apply for
17 participation in the program in the 2025-2026 school
18 year, the household income of the student's parent(s)
19 is equal to or greater than seven hundred percent
20 (700%) of the federal poverty level (FPL).

21 b. Prior to receiving any Oklahoma Higher Learning Access
22 Program benefit award for any year during which the
23 student is enrolled in an institution that is a member
24 of The Oklahoma State System of Higher Education, a

1 postsecondary vocational-technical program offered by
2 a technology center school that meets the eligibility
3 requirements for federal student financial aid, or a
4 private institution of higher learning located within
5 this state and accredited pursuant to Section 4103 of
6 this title, the household income of the parent(s) of a
7 student who qualifies pursuant to this paragraph shall
8 not be equal to or greater than seven hundred percent
9 (700%) of the federal poverty level (FPL).

10 c. The Oklahoma State Regents for Higher Education shall
11 verify the full-time employment status of the
12 student's parent(s) and the current standard or
13 alternative certification in a classroom subject of
14 the parents prior to a student who qualifies pursuant
15 to this paragraph receiving any Oklahoma Higher
16 Learning Access Program benefit award.

17 d. For the purposes of this paragraph, ~~"certified~~
18 ~~classroom teacher"~~ "certified teacher" means a
19 ~~certified,~~:

20 (1) full-time classroom teacher standard or
21 alternatively certified as a teacher by the State
22 Board of Education, teaches a classroom subject
23 as determined by the State Regents, and who has
24 been employed as a teacher in a public school

1 district classroom in this state for a minimum of
2 ten (10) years prior to his or her child applying
3 for participation in the program,

4 (2) full-time counselor, librarian, school nurse, or
5 athletic trainer who is standard or alternatively
6 certified as a teacher by the State Board of
7 Education if employed by a public school district
8 or a technology center school district in this
9 state and otherwise fulfills the requirements of
10 this paragraph, and

11 (3) full-time classroom teacher standard or
12 alternatively certified as a teacher by the State
13 Board of Education who is employed to teach K-12
14 public school students at a technology center
15 school district in this state if the teacher is
16 employed to teach at least one fall and one
17 spring semester class per academic year that
18 provides free public education to at least one K-
19 12 student and if the teacher otherwise fulfills
20 the requirements of this paragraph.

21 e. The certified teacher ~~is~~ shall not be required to have
22 been employed by the same public school district for
23 ten (10) consecutive years and the ten (10) years of
24 employment shall not be required to be consecutive.

1 However, the ten (10) years of employment shall have
2 occurred in the last twenty (20) years.

3 f. Certified ~~classroom~~ teacher does not mean a certified
4 teacher who is employed as a school district
5 superintendent, principal, or any other position
6 within the administration of a public school district
7 when his or her child applies for participation in the
8 program or prior to his or her child receiving any
9 Oklahoma Higher Learning Access Program benefit award.

10 g. Service as an emergency or provisional certified
11 teacher shall not qualify for the employment
12 requirements in this paragraph.

13 F. The financial qualification of a student as set forth in
14 subsections D and E of this section shall be certified by the
15 contact person or by the Oklahoma State Regents for Higher Education
16 on the agreement form provided by the Oklahoma State Regents for
17 Higher Education. The form shall be retained in the permanent
18 record of the student and a copy forwarded to the Oklahoma State
19 Regents for Higher Education.

20 G. Agreements shall be witnessed by the parent, custodial
21 parent, or guardian of the student, who shall further agree to:

22 1. Assist the student in achieving compliance with the
23 agreements;
24

1 2. Confer, when requested to do so, with the school contact
2 person, other school personnel, and program mentors;

3 3. Provide information requested by the Oklahoma State Regents
4 for Higher Education or the State Board of Education; and

5 4. Assist the student in completing forms and reports required
6 for program participation, making applications to institutions and
7 schools of higher learning, and filing applications for student
8 grants and scholarships.

9 H. The Oklahoma State Regents for Higher Education shall
10 promulgate rules for the determination of student compliance with
11 agreements made pursuant to this section.

12 I. The Oklahoma State Regents for Higher Education shall
13 designate personnel to coordinate tracking of program records for
14 the years when students participating in the program are still in
15 the schools or are being educated by other means, provide staff
16 development for contact persons in the schools, and provide liaison
17 with the State Board of Education and local organizations and
18 individuals participating in the program.

19 J. The school district where an Oklahoma Higher Learning Access
20 Program student is enrolled when the student begins participation in
21 the program and any subsequent school district where the student
22 enrolls shall forward information regarding participation by the
23 student in the program to a school to which the student transfers
24 upon the request of the school for the records of the student.

1 K. Students participating in the Oklahoma Higher Learning
2 Access Program shall provide their Social Security number or their
3 student identification number used by their school to the Oklahoma
4 State Regents for Higher Education. The State Regents shall keep
5 the numbers confidential and use them only for administrative
6 purposes.

7 L. The State Regents may provide an exception to the age limits
8 provided for in paragraphs 1 and 2 of subsection C of this section
9 to a student due to hardship circumstances and allow an application
10 to the Oklahoma Higher Learning Access Program for twelfth-grade
11 students enrolled in a public or private school and students who are
12 educated by other means and are in the equivalent of twelfth grade.
13 Provided, however, the exception due to hardship circumstances shall
14 not apply to:

15 1. A student enrolled in a public or private school after the
16 student's official date of high school graduation;

17 2. A student educated by other means who is age nineteen (19)
18 or older; or

19 3. Any student who is age twenty-one (21) or older.

20 The Oklahoma State Regents for Higher Education shall promulgate
21 rules to implement the provisions of this subsection.

22 SECTION 3. AMENDATORY 62 O.S. 2021, Section 34.87, as
23 amended by Section 1, Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025,
24 Section 34.87), is amended to read as follows:

1 Section 34.87. In order to ensure that the Oklahoma Higher
2 Learning Access Program will be fully funded and all eligible and
3 qualifying students receive scholarships, the following procedures
4 shall be observed:

5 1. Not later than November 1, 2007, and November 1 of each
6 subsequent year, the Oklahoma State Regents for Higher Education
7 shall estimate for the fiscal year which begins the following July
8 1, the amount amounts of revenue they deem necessary to fund:

9 a. awards allowed pursuant to the Oklahoma Higher
10 Learning Access Act as the Act existed at the
11 beginning of the 2026-2027 school year, and

12 b. awards allowed pursuant to any expansion of the
13 Oklahoma Higher Learning Access Act after the
14 beginning of the 2026-2027 school year. , for the
15 fiscal year which begins the following July 1 and
16 provide such estimate to the State Board of
17 Equalization The Oklahoma State Regents for Higher
18 Education shall report the estimate calculated
19 pursuant to subparagraph a of this paragraph to the
20 State Board of Equalization, and the estimate
21 calculated pursuant to subparagraph b of this
22 paragraph to the Board of Investors of the Tobacco
23 Settlement Endowment Trust Fund;
24

1 2. At its meeting in December 2007, and December of each
2 subsequent year, held pursuant to the provisions of paragraph 1 of
3 Section 23 of Article X of the Oklahoma Constitution, the State
4 Board of Equalization shall determine the total amount of revenue
5 necessary to fund awards allowed pursuant to the Oklahoma Higher
6 Learning Access Act for the fiscal year which begins the following
7 July 1 and reflect such amount as it certifies amounts available for
8 appropriation from the General Revenue Fund by the Legislature for
9 such fiscal year and identify the amount to be authorized pursuant
10 to paragraph 3 of this section; and

11 3. Notwithstanding any other provisions of law directing the
12 apportionment of revenues, beginning with the fiscal year ending
13 June 30, 2009, and for each subsequent fiscal year, the Director of
14 the Office of Management and Enterprise Services shall transfer on a
15 periodic basis as needed the amount of revenue calculated pursuant
16 to subparagraph a of paragraph 1 of this section, to be deposited to
17 the Oklahoma Higher Learning Access Trust Fund, provided that the
18 total amount of such transfers in any fiscal year shall not exceed
19 the amount authorized for transfer by applicable budget legislation
20 for such fiscal year.

21 SECTION 4. Section 1 of this act shall become effective
22 November 1, 2026.

23 SECTION 5. Sections 2 and 3 of this act shall become effective
24 only upon the adoption by the People of Oklahoma of the State

1 Question created pursuant to Enrolled HJR 1077 of the Second Session
2 of the 60th Oklahoma Legislature.

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